Two Threads Pulled:

Madison's Convention Notes on the "Emit Bills" Debate and Justice Field's Dissents in the Legal Tender Cases

Notes on Bancroft, Primary Sources, and the Logic of Constitutional Commitment

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1 Introduction: Two Interpretive Puzzles

The previous document on Bancroft's *Plea for the Constitution* closed with two threads worth pulling. The first concerns the precision of Bancroft's historical claim that the Constitutional Convention of 1787 "shut and barred the doors against paper money" by deliberate supermajority vote—a claim that can now be checked against the primary source Bancroft himself cites, James Madison's convention minutes for Thursday, August 16, 1787. The second concerns Justice Stephen Field's dissents in the Legal Tender Cases, which Bancroft treats as vindicated by history but which are worth examining closely for their own constitutional logic, particularly the argument that the principle "where a power is not expressly forbidden it may be exercised" would fundamentally transform the character of the American constitutional order.

Both threads converge on a single hermeneutical crux: the text of Madison's own footnote to his record of the August 16 vote, which the *Juilliard* majority turned against Bancroft's reading to argue that striking out "emit bills" had deliberately left the legal tender question unresolved. This makes the episode more genuinely ambiguous than either Bancroft or his opponents admitted—and connects it, by a deep structural logic, to the ambiguity we have traced in the 5-20 bond legislation.

2 The Primary Source: Madison's Notes for August 16, 1787

The relevant passage in Madison's notes is brief—under twenty lines— but its brevity conceals a remarkable range of positions and a carefully recorded footnote that became the pivot of later constitutional controversy. The full account of the "emit bills" debate is worth reconstructing in detail.

2.1 The Motion and Its Framing

The committee of detail's draft of what would become Article I, Section 8 read, in the relevant part: the Congress shall have power "to borrow money and emit bills on the credit of the United States." Gouverneur Morris moved to strike out the words "and emit bills on the credit of the United States." His reasoning was lapidary: "If the United States had credit such bills would be unnecessary: if they had not, unjust and useless."

This was not a merely prudential argument about the dangers of depreciation; it was a logical syllogism. Good credit made paper notes redundant—creditors would lend on ordinary terms without the coercive device of legal tender. Bad credit made them a fraud— forcing creditors to accept a depreciating instrument at face value was an act of dispossession in statutory disguise. Butler seconded the motion.

2.2 Madison's Initial Position: A Middle Path

Madison's first response was not to support Morris's motion but to propose a softer alternative: "will it not be sufficient to prohibit the making them a tender? This will remove the temptation to emit them with unjust views. And promissory notes in that shape may in some emergencies be best."

This is a crucial moment. Madison in August 1787 initially favored retaining the power to emit bills while stripping the legal tender quality—precisely the structure that the Legal Tender Act of 1862 would later adopt for interest payments on the 5-20s (coin mandated) while leaving the principal currency question open. The instrument he envisaged was a government bill that circulated by voluntary market acceptance rather than legal compulsion—close to what modern central banking terminology would call "high-powered money" without legal tender status.

Morris's reply sharpened the analysis: striking out the words entirely would leave room still for "notes of a responsible minister"— a phrase that bears emphasis—"which will do all the good without the mischief." The "monied interest" would oppose any constitution that retained the paper emission power. Here is the reputational logic again: if the power existed in statutory form, investors would price it into bond yields; if it was credibly committed away, borrowing costs would fall. This is precisely the Rogoff (1985) logic of institutional commitment as a substitute for the discretion of the current officeholder.

2.3 The Range of Positions

The subsequent debate divided the delegates into several camps, recorded with unusual clarity in Madison's minutes:

For striking out entirely without any prohibition: Gorham (Massachusetts) argued that if the words stood, they would "suggest and lead to the measure," and that "the power, so far as it will be necessary or safe, is involved in that of borrowing." Ellsworth (Connecticut) called it "a favorable moment to shut and bar the door against paper money," adding that "the mischiefs of the various experiments which had been made, were now fresh in the public mind and had excited the disgust of all the respectable part of America." Wilson (Pennsylvania) thought "it will have a most salutary influence on the credit of the U. States to remove the possibility of paper money." Butler (South Carolina) noted that "paper was a legal tender in no Country in Europe." And Langdon (New Hampshire) delivered the meeting's most dramatic line: he "had rather reject the whole plan than retain the three words." Read (Delaware) thought the words, if not struck, "would be as alarming as the mark of the Beast in Revelations."

For retaining the power: Randolph (Virginia) "notwithstanding his antipathy to paper money, could not agree to strike out the words, as he could not foresee all the occasions that might arise." Mason (Virginia) professed "a mortal hatred to paper money" but was "unwilling to tie the hands of the Legislature," observing that "the

late war could not have been carried on, had such a prohibition existed." Mercer (Maryland) was more candidly in favor of retaining the power, arguing that it "would stamp suspicion on the Government to deny it a discretion on this point."

Voted against the motion but signed the Constitution: New Jersey alone voted no, along with Maryland. Crucially, both Randolph and Mason—who had spoken against the motion—are recorded as voting with Virginia's affirmative, because of what Madison's footnote tells us.

2.4 The Vote and Madison's Footnote

The motion carried 9–2 (New Hampshire, Massachusetts, Connecticut, Pennsylvania, Delaware, Virginia, North Carolina, South Carolina, and Georgia voting aye; New Jersey and Maryland no).

Virginia's affirmative vote was unexpected, given that both Randolph and Mason had spoken against the motion. Madison's footnote to his own record of the vote explains: "This vote in the affirmative by Virga. was occasioned by the acquiescence of Mr. Madison who became satisfied that striking out the words would not disable the Govt. from the use of public notes as far as they could be safe and proper; and would only cut off the pretext for a paper currency, and particularly for making the bills a tender either for public or private debts."

This footnote is the pivot of the entire subsequent controversy, and it rewards extremely careful reading.

3 Bancroft's Account vs. Madison's Notes: Where They Agree and Diverge

3.1 Where Bancroft Is Accurate

Bancroft's account in Part III of the *Plea* is substantially accurate in its core claim: the Convention deliberately struck the "emit bills" language, did so by a large and determined majority (9–2), and most delegates understood themselves to be cutting off the pretext for paper legal tender. The direct quotations Bancroft provides from the debates—Morris's syllogism, Wilson's "most salutary influence," Gorham's argument, Mason's "mortal hatred"—all appear in Madison's minutes. Bancroft also accurately records Madison's own footnote explaining the Virginia vote.

On the crucial historical question of intent, Bancroft has the better of the argument against the Juilliard majority. The delegates who spoke at greatest length in favor of striking out—Morris, Wilson, Ellsworth, Langdon—were not merely removing an inconvenient grant; they were making an affirmative constitutional statement about the kind of monetary system the new government would have. Gorham's argument that the power "so far as it will be necessary or safe, is involved in that of

borrowing" is the germ of what became the *McCulloch/Juilliard* majority position—but Gorham was the most cautious voice among those who wanted to strike, and even he said only "so far as it will be necessary or safe," not "without limit."

3.2 The Hermeneutical Ambiguity That Bancroft Downplays

Yet Madison's footnote is genuinely ambiguous in a way that Bancroft does not fully confront, and that Justice Gray's majority in *Juilliard* exploited effectively.

Madison writes that striking out the words would "not disable the Govt. from the use of public notes as far as they could be safe and proper." This sentence has two possible readings.

Under Bancroft's reading, "as far as they could be safe and proper" means: the government may issue bills that circulate voluntarily, but may not give them the force of legal tender, which is the unsafe and improper application. The Convention struck the power to make bills legal tender, while leaving the power to issue voluntary instruments.

Under Gray's reading in *Juilliard*, the footnote establishes that Madison *deliberately chose not to prohibit the power entirely*, because he thought Congress would retain some bill-issuing capacity from its borrowing power. The question of legal tender status was therefore not definitively resolved by the "emit bills" deletion. Gray writes: "But he has not explained why he thought that striking out the words 'and emit bills' would leave the power to emit bills, and deny the power to make them a tender in payment of debts."

This is a genuine textual difficulty. Madison's footnote says the deletion would cut off the pretext for "making the bills a tender"— which implies he thought the tender power was eliminated. But his initial motion in the debate ("will it not be sufficient to prohibit the making them a tender?") had treated the tender quality as separable from the emission power—and he abandoned that motion in favor of Morris's more complete deletion. If Madison really believed the deletion eliminated legal tender but not emission, as his footnote asserts, then Gray's question—why did he think so?—has no clean answer from the text alone.

The honest assessment is that Madison himself held the ambiguity in his own mind. He believed the Convention had cut off the pretext for legal tender, but the textual mechanism by which that occurred was implicit (emission power gone, hence tender power gone too) rather than explicit (a textual prohibition on the federal government's making paper a legal tender, analogous to the explicit prohibition on the states in Article I, Section 10). The absence of that explicit prohibition is precisely what both the *Knox v. Lee* majority and the *Juilliard* majority hung their arguments on.

3.3 Bancroft vs. Madison on the Convention's Affirmative Design

Where Bancroft is on firmest ground is in documenting the *spirit* of the August 16 vote, independent of the precise textual mechanism. The delegates who spoke most forcefully—and who voted aye—were not engaged in a technical act of drafting economy. Langdon would have rejected the entire Constitution to excise three words. Ellsworth called it "a favorable moment to shut and bar the door." Wilson described the effect as "removing the possibility of paper money." Read compared the words to the mark of the Beast.

This is not the language of men who thought they were leaving a discretionary power in the borrowing clause. And Madison's own footnote—"would only cut off the pretext for a paper currency, and particularly for making the bills a tender"—uses the word "only" as a limiting particle: the sole effect of the deletion was to eliminate paper legal tender, not to disable government borrowing. The burden of Bancroft's argument is that the Convention's demonstrable intent—as expressed both in the recorded debate and in Madison's own explanatory note—cannot be overridden by the interpretive technique of finding silence where the Framers evidently expected prohibition to be implied.

4 Justice Field's Dissents: A Close Reading

Field dissented in all three Legal Tender Cases—*Hepburn v. Griswold* (1870, though there he was in the majority under Chase), *Knox v. Lee* (1871), and *Juilliard v. Greenman* (1884). His *Knox* dissent is the fullest statement of his position; in *Juilliard* he simply adhered to the views expressed in the earlier cases, and the majority noted this without attempting to answer his arguments on the merits. Field's dissent richly repays close reading as a piece of constitutional reasoning.

4.1 The Positive Claim: "Coin Money" Is Incompatible with Paper Legal Tender

Field opens his substantive constitutional argument with a point that is more powerful than it initially appears. The power "to coin money," he argues, is not merely in tension with a power to make paper legal tender; it is structurally incompatible with one. To coin money is to mould metallic substances having intrinsic value into certain forms convenient for commerce, and to impress them with the stamp of the government indicating their value. The point of coinage is precisely that the stamp attests to an intrinsic value: the coin is worth what the government says it is worth because the metal in it is worth that.

The legal tender power, by contrast, divorces denomination from intrinsic value. It says: this piece of paper, which has no intrinsic value, shall nevertheless discharge

a debt of one hundred dollars in full. This is not a regulation of monetary value; it is a legal compulsion substituted for monetary value. "Such a medium," Chief Justice Marshall had written of paper money, "has been always liable to considerable fluctuation. Its value is continually changing; and these changes, often great and sudden, expose individuals to immense loss, are the sources of ruinous speculations, and destroy all confidence between man and man."

Field's argument is that the Framers, in giving Congress the power to coin money and regulate its value, and in giving the states the power to make nothing but gold and silver coin a tender, had established a coherent metallic monetary system in which the legal tender quality and the intrinsic value of the tender were inseparable. To read the federal borrowing power as implicitly containing a legal tender power was to read into the Constitution an instrument that its express monetary provisions were designed to exclude.

The inhibition on the states to make anything but gold and silver coin a tender, Field writes, "must be read in connection with the grant of the coinage power to Congress. The two provisions taken together indicate beyond question that the coins which the National government was to fabricate, and the foreign coins, the valuation of which it was to regulate, were to consist principally, if not entirely, of gold and silver." The structure of the monetary provisions—the positive coinage power, the state prohibition, the foreign coin valuation—forms a system in which paper legal tender has no place.

4.2 The Negative Claim: "The Wants of the Government Can Never Be the Measure of Its Powers"

Field's second main argument targets the reasoning by which both *Knox* and *Juilliard* derived the legal tender power from the war power and the borrowing power. The core of that reasoning, as Field understood it, was: the Civil War created an urgent need for funds; paper money was the means Congress chose; therefore, having the power to conduct war and to borrow money, Congress had the implied power to make its paper legal tender.

Field objects that this reasoning makes the magnitude of government want the measure of government power. "The existence of the war only increased the urgency of the government for funds. It did not add to its powers to raise such funds, or change, in any respect, the nature of those powers or the transactions which they authorized. ... The wants of the government can never be the measure of its powers."

This is one of the most important sentences in the history of American constitutional law, and it deserves to be stated in its full force. Under the implied powers doctrine as Bancroft's opponents used it, extreme necessity generates extreme power: because the Union could not survive without paper money in 1862, Congress must have had the constitutional power to issue it. Field's response is that this is precisely backwards. The enumerated powers doctrine is not an all-weather principle that ap-

plies only in ordinary times and yields in emergencies; it is a constraint that applies *precisely* in emergencies, when the temptation to override it is greatest. An emergency that expands implied powers is an emergency that effectively rewrites the Constitution without amendment—converting a document of limited enumerated powers into an instrument of unlimited sovereign discretion.

The force of this argument can be appreciated by comparing it to the structure of the 5-20 bond episode. Chase argued in 1862 that the war emergency necessitated legal tender; he later argued in *Hepburn* that the same emergency had not created constitutional authority for it. Field's response to both positions is consistent: emergency necessity is not a constitutional source of power, whether we are evaluating the original act or evaluating it retrospectively. The wants of the government in 1862 were real and urgent. They were also constitutionally irrelevant to the scope of congressional power.

4.3 The Enumerated-Powers Syllogism: The Bankruptcy Argument

Field's most precise constitutional argument is a negative inference from the express grant of bankruptcy power. Article I, Section 8 gives Congress the power to establish uniform laws of bankruptcy. This is the one express provision by which Congress may alter the obligation of contracts—specifically, by releasing insolvent debtors from their debts upon surrender of their property.

Field's inference is that this *express* grant is a strong argument against any *implied* general power in Congress to interfere with the obligation of contracts. The constitutional structure is: if Congress needed an express grant to authorize bankruptcy (which releases debtors from their contracts in a supervised and equitable proceeding), then Congress certainly needed an express grant to authorize compulsory partial discharge at a depreciated value (which is what legal tender for private debts amounts to). The express grant proves that the Framers understood this class of legislation as requiring explicit authorization, not implied power.

This argument cuts directly against the *McCulloch* framework as applied in *Knox* and *Juilliard*. Under *McCulloch*, necessary and proper means are constitutional even when not expressly enumerated, provided they are conducive to the execution of an enumerated power. Field's bankruptcy argument says: the structure of the Constitution itself tells us that this particular class of means—interference with contractual obligations—requires express authorization, because the Framers put in an express grant for the specific, limited version of it they approved. To read implied power here is to render the express bankruptcy clause redundant.

4.4 The Master Argument: "The Doctrine That Where a Power Is Not Expressly Forbidden It May Be Exercised"

Field's culminating argument is the most fundamental, and it is the one that Bancroft endorses most emphatically. The Juilliard majority's reasoning, stripped to its logical structure, was: the power to make paper legal tender is not expressly withheld from Congress by the Constitution; therefore, being one of the powers belonging to sovereignty in other civilized nations, it is included in the implied powers available to Congress.

Field's response: "The doctrine that where a power is not expressly forbidden it may be exercised, would change the whole character of our government."

The logic of this response requires unpacking. The Tenth Amendment reserves to the states or the people all powers not delegated to the federal government. This means the federal government's powers are defined by positive delegation, not by residual exception. A constitutional design of enumerated powers says: the government may do X, Y, and Z (and what is necessary and proper to execute them). It does not say: the government may do anything except A, B, and C. The latter design characterizes a government of general powers with specific exceptions, which is the design of state constitutions, not the federal constitution.

Gray's majority opinion in *Juilliard*, by finding legal tender power in the proposition that it is "not expressly withheld," had implicitly converted the federal constitution from a grant-of-powers document into an exception-from-powers document. This is not a minor interpretive shift; it is a transformation of the constitutional structure. On Gray's logic, every power belonging to European sovereignties that Congress has not been expressly forbidden is available to Congress. That is not a constitution of limited enumerated powers.

Field had delivered the same argument's logical culmination in his dissent in *Knox*: "I do not yield to any one in honoring and reverencing the noble and patriotic men who were in the councils of the nation during the terrible struggle with the rebellion. ... But I do not admit that a blind approval of every measure which they may have thought essential to put down the rebellion is any evidence of loyalty to the country. The only loyalty which I can admit consists in obedience to the Constitution and laws made in pursuance of it."

This parting shot in the Legal Tender dissents is not mere rhetoric. It addresses the specific argument that had been used against opponents of the Legal Tender Acts in 1862 and thereafter: that to question the constitutional power was to be lukewarm about the Union cause. Field's response is constitutionally principled. Loyalty to the Constitution is not the same as loyalty to every emergency measure taken in its defense; if it were, the constitution would dissolve in any sufficiently grave emergency—precisely the outcome a written constitution of limited powers is designed to prevent.

5 The Interpretive Logic Puzzle: What Did the Convention Do?

The two threads we have pulled converge on what might be called the interpretive logic puzzle of the "emit bills" deletion. Both Bancroft and Field claim that the Convention clearly prohibited paper legal tender. Both the *Knox* majority and the *Juilliard* majority claim that the Convention left the question unresolved. The puzzle is: which reading of Madison's notes is correct?

5.1 The Four Positions

The positions map neatly onto a two-by-two matrix defined by two questions: (1) Did the Convention intend to prohibit paper emission, or merely paper legal tender? (2) Did the Convention successfully achieve its intent through the textual mechanism of deleting "emit bills"?

Bancroft/Field position: The Convention intended to prohibit paper legal tender (and paper emission generally); the deletion successfully achieved this, and any residual emission power in the borrowing clause did not include the legal tender quality.

Gorham/McCulloch/Knox majority position: The Convention intended to remove an affirmative grant while leaving open what the borrowing power implied; the deletion was agnostic on legal tender; therefore, the implied power question is determined by the borrowing power, read in light of *McCulloch*.

Madison's own position (as stated in footnote): The Convention intended to cut off the pretext for paper legal tender specifically; the deletion achieved this by removing the affirmative basis for such a claim; but Madison did not expressly prohibit paper legal tender, because he believed—perhaps overoptimistically—that removing the affirmative grant was sufficient.

Gray/Juilliard majority position: Madison's footnote shows only that Madison personally interpreted the deletion as cutting off the legal tender pretext; it does not show that other delegates shared this understanding; and the Convention's failure to include an express prohibition analogous to Article I, Section 10's prohibition on the states is the operative textual datum.

5.2 The Structural Asymmetry

What is most striking about this debate is a structural asymmetry that neither side fully acknowledges. The Convention *was* willing to write explicit prohibition when it meant it: Article I, Section 10 explicitly forbids states to make anything but gold and silver coin a tender. No comparable provision applies to the federal government. Bancroft argues that the omission of the "emit bills" power was an implicit equivalent prohibition. Gray argues that the absence of an explicit parallel prohibition is the decisive datum.

Both arguments are available from the text; neither is conclusive. This is, in the final analysis, an instance of the same structural problem we have traced throughout this series: the absence of explicit language creates interpretive ambiguity that is resolved by political outcomes rather than textual logic. The Convention of 1787, like the Congress of 1862, left a question formally open that its participants believed they had closed through implication. The subsequent resolution of both questions—in 1871 and 1884 for the constitutional question, in 1869 for the 5-20 principal question—depended on who held political power when the bill came due.

6 Field's Dissents and the Commitment Theory Connection

Field's dissents can be read, through the lens of modern commitment theory, as making a point about constitutional design that the legal tender debate brings into sharp relief.

The core commitment problem in monetary policy is that a government always has a short-run incentive to inflate (or in the nineteenth century context, to debase or depreciate its obligations), even when long-run credibility requires restraint. The solution, under the Kydland-Prescott framework, is to install institutional constraints that make the inflationary option costly or unavailable—to convert the problem from one of discretion (where the optimum is time-inconsistent) to one of rules (where commitment is enforced by the constraint itself).

The Constitutional Convention of 1787, on Bancroft's and Field's reading, was attempting to do exactly this: to write the time-inconsistency constraint into the constitutional text by eliminating the federal legal tender power. The commitment was to be self-enforcing because it was constitutional—not merely statutory (like the Public Credit Act of 1869, which could be and in practice was later modified) or reputational (like Chase's implicit gold-repayment promise on the 5-20 principal, which dissolved in the 1867–68 political fight).

What Field understood, and Bancroft articulated in historical terms, is that the *Knox/Juilliard* line of decisions had retroactively converted the constitutional commitment from a hard constraint to a soft one. If the legal tender power exists whenever the government's wants are urgent enough—whenever a sufficiently grave emergency demands the "medicine of the constitution"—then there is no hard constraint at all. The commitment is endogenous: the government retains legal tender as an implied reserve power to be deployed precisely when the temptation to deploy it is greatest, which is precisely when a hard constraint would bind.

Field's sentence—"the wants of the government can never be the measure of its powers"—is the constitutional formulation of the Kydland-Prescott critique of discretion. A rule that suspends itself whenever rule-following is costly is not a rule; it is discretion with extra steps. A constitutional prohibition that yields when the

government urgently needs it to yield is not a prohibition; it is a default position subject to override.

6.1 The Residual Ambiguity: When Hard Constraints Breed Harder Crises

Yet the opposing position—the one held by Mason, Randolph, Gorham, and ultimately by the *Knox/Juilliard* majority—also has a commitment-theoretic dimension that Field does not adequately address. If the constitutional constraint is genuinely hard, it may produce catastrophic discontinuities: a government that cannot borrow by any means in a genuine military emergency may lose the war, which is a worse outcome than the monetary depreciation that legal tender produces. Mason's argument at Philadelphia—"the late war could not have been carried on, had such a prohibition existed"—is exactly this emergency-flexibility argument.

The response Field would give (and does give implicitly) is that the flexibility to issue legal tender in genuine emergencies should be obtained through constitutional amendment, not through judicial interpretation. If the Civil War revealed that the constitution as written was too rigid, the remedy was to amend it. Instead, the Court amended it by judicial construction, transforming a hard constraint into a soft one without the democratic process the amendment procedure requires.

This is also, in miniature, the story of the 5-20 bond principal ambiguity. The 37th Congress in 1862 had the option of writing an explicit gold-payment clause into the principal repayment provision, but did not—because doing so would have cost the votes needed for passage. The flexibility was preserved through statutory silence, at the cost of six years of political uncertainty resolved only by the Public Credit Act of 1869. Field's logic would say: if the Congress needed the flexibility, it should have written the greenback-principal option explicitly and borne the political cost; silence-as-ambiguity is the institutionalization of what Madison called "the epidemic malady"—the temptation to delay unresolvable disagreements by passing them forward.

7 Synthesis: What the Two Threads Reveal

Pulling the threads together, the comparison of Madison's notes with Bancroft's account, and the close reading of Field's dissents, produce several conclusions.

On the convention, Bancroft is substantially right about the intent and the facts, but the Gray majority correctly identified a structural lacuna: the absence of an explicit federal paper legal tender prohibition analogous to Article I, Section 10. Madison's footnote is the key primary source, and it is genuinely ambiguous between Bancroft's reading (the deletion cut off the legal tender pretext) and Gray's reading (the deletion left open the question of what the borrowing power implied). What the

primary source does establish, against the *Juilliard* majority, is that Madison himself at the time believed the deletion achieved the anti-legal-tender purpose—which is powerful evidence of original intent, even if the textual mechanism was imperfect.

On Field's dissents, they are more sophisticated as constitutional arguments than their reputation suggests. The bankruptcy inference, the incompatibility-of-coinage argument, and the enumerated-powers master argument are all serious pieces of constitutional reasoning. The most important sentence—"the doctrine that where a power is not expressly forbidden it may be exercised, would change the whole character of our government"—correctly identifies the constitutional transformation that *Juilliard* accomplished: a shift from a constitution of enumerated powers to a constitution of residual sovereign powers, defined by exception rather than delegation.

On the connection to the 5-20 bond ambiguity: the two ambiguities are instances of the same underlying political economy problem—the difficulty of making credible commitments about money through institutional mechanisms that are themselves endogenous to the political process. The Convention created an imperfect constitutional hard constraint; the 37th Congress created a statutory soft commitment; and the Legal Tender Cases converted the constitutional constraint into something closer to the statutory arrangement. In each case, the resolution depended on political outcomes (Grant's election, Grant's court appointments) rather than on the logic of the original text.

Madison in 1787 and Field in 1871 and 1884 both understood the same structural point, though in different registers: that a commitment is only as durable as the institutional mechanism that enforces it, and that a commitment enforced only by implication—only by the good faith of future interpreters—is not much of a commitment at all.

Appendix: Key Passages in Madison's August 16, 1787 Notes

The following passages are reproduced from Madison's convention minutes (Max Farrand, ed., *Records of the Federal Convention of 1787*, Vol. 2), as transcribed at consource.org:

> Mr. Govr. Morris moved to strike out "and emit bills on the credit of the U. States"—If the United States had credit such bills would be unnecessary: if they had not unjust and useless.
>
> Mr. Butler 2ds. the motion.
>
> Mr. Madison, will it not be sufficient to prohibit the making them a tender? This will remove the temptation to emit them with unjust views. And promissory notes in that shape may in some emergencies be best.
>
> Mr. Govr. Morris. striking out the words will leave room still for notes of a responsible minister which will do all the good without the mischief.

> The Monied interest will oppose the plan of Government, if paper emissions be not prohibited.
>
> Mr. Ghorum was for striking out, without inserting any prohibition. if the words stand they may suggest and lead to the measure. . . . The power as far as it will be necessary or safe, is involved in that of borrowing.
>
> Col. Mason had doubts on the subject. Congs. he thought would not have the power unless it were expressed. Though he had a mortal hatred to paper money, yet as he could not foresee all emergences, he was unwilling to tie the hands of the Legislature.
>
> Mr. Ellsworth thought this a favorable moment to shut and bar the door against paper money.
>
> Mr. Wilson. It will have a most salutary influence on the credit of the U. States to remove the possibility of paper money.
>
> Mr. Butler. paper was a legal tender in no Country in Europe.
>
> Mr. Read, thought the words, if not struck out, would be as alarming as the mark of the Beast in Revelations.
>
> Mr. Langdon had rather reject the whole plan than retain the three words.
>
> On the motion for striking out N. H. ay. Mas. ay. Ct. ay. N-J. no. Pa. ay. Del. ay. Md. no. Va. ay. N. C. ay. S. C. ay. Geo. ay. [Ayes – 9; noes – 2.]

Madison's footnote to Virginia's affirmative vote:

> This vote in the affirmative by Virga. was occasioned by the acquiescence of Mr. Madison who became satisfied that striking out the words would not disable the Govt. from the use of public notes as far as they could be safe & proper; & would only cut off the pretext for a paper currency and particularly for making the bills a tender either for public or private debts.

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